

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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LEE DELGADO Jr.,

Index No.: 25772/2020E

Plaintiff,

**AMENDED
VERIFIED COMPLAINT**

-against-

CITY OF NEW YORK, P.O. JOEL AYALA,
P.O. EDMUNDO RIVERA, Lt. ANDERSON ORTIZ, and
POLICE OFFICERS JOHN AND JAMES DOE, meant to
designate offending officers, Individually and in their
official capacities,

Defendants.
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Plaintiff, by his attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF LEE DELGADO Jr.

1. At the time of the commencement of this action, plaintiff LEE DELGADO Jr. was

and still is a resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and

State of New York.
3. That at all times herein mentioned, Defendants CITY OF NEW YORK was, and

still is, a Municipal Corporation and body politic, duly formed, organized and existing

under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about July 28, 2019 P.O. JOEL AYALA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about July 28, 2019, at approximately 8 P.M., P.O. JOEL AYALA was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about July 28, 2019 P.O. EDMUNDO RIVERA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about July 28, 2019, at approximately 8 P.M., P.O. EDMUNDO RIVERA was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on and about July 28, 2019 Lt. ANDERSON ORTIZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
10. That on and about July 28, 2019, at approximately 8 P.M., Lt. ANDERSON ORTIZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.

11. That on and about July 28, 2019, OFFICERS JOHN AND/OR JAMES DOE, as hereinafter referred to, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

12. That on and about July 28, 2019, at approximately 8 P.M., said OFFICERS JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officers, and under the color of law.

13. That on or about July 28, 2019 at approximately approximately 8 P.M., plaintiff was lawfully present at or near the vicinity of East 184th Street and Ryer Avenue, Bronx, New York plaintiff.

14. That near the above time and approximate place plaintiff became aware that an individual was arrested by police and from a distance saw an interaction with police officers. Plaintiff then left the area, and shortly thereafter plaintiff saw his friend running and his friend appeared scared. This frightened plaintiff, who had only turned 18 years of age the week prior, who then also ran in the direction his friend ran.

15. Plaintiff was then tacked from behind by an officer and landed face down on the pavement. The officer then turned the plaintiff over and viciously and repeatedly beat, battered and assaulted plaintiff without justification.

16. That offending officer did utilize unnecessary unjustified excessive force upon plaintiff, which constituted an assault and battery upon plaintiff.

17. That offending officer is described as best as can be ascertained at this time, as a caucasian male in an officer's white shirt, perhaps approximately 6 feet tall, average to muscular build.

18. That offending officer then instructed another officer, believed to perhaps have the name 'Phillips' and being described, as best as can be ascertained at this time, as light skinned heavy male with short black hair in uniform, to take plaintiff into custody.

19. That upon information and belief, the offending officer did transfer custody of plaintiff to another officer in an attempt to hide his identity from scrutiny, responsibility and service of process.

20. That on or about July 28, 2019 at approximately approximately 8 P.M., at or near the vicinity of East 184th Street and Ryer Avenue, Bronx, New York, the plaintiff LEE DELGADO Jr. was assaulted and improperly arrested and confined without privilege, knowledge of warrant, proper authority nor justification, having no reason in law or in fact to assault, arrest or confine LEE DELGADO Jr..

21. That the defendants, their agents, servants and/or employees arrested the plaintiff LEE DELGADO Jr. without any basis in law or fact and without reasonable, probable or just cause or justification.
22. That the defendants, their agents, servants and/or employees arrested the plaintiff LEE DELGADO Jr. without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.
23. That the defendants, their agents, servants and/or employees unlawfully arrested, searched and detained the plaintiff LEE DELGADO Jr., who was aware of his unlawful detention and confinement, and took his property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.
24. That plaintiff was forcibly detained, including being restrained by hand cuffs and by other means, which necessarily constituted additional unwanted touching, thereby further assaulting and battering plaintiff.
25. That plaintiff was transported to the 46th Police Precinct where he was placed in a jail cell and ultimately transported while physically restrained to St. Barnabas Hospital.

26. After a period of time, while restrained at St. Barnabas Hospital, P.O. JOEL

AYALA did issue to plaintiff two summons, and released plaintiff from custody.

27. That the defendants P.O. JOEL AYALA, P.O. EDMUNDO RIVERA, Lt.

ANDERSON ORTIZ and OFFICERS JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby initiating and causing him to suffer an unjust prosecution that defendants had no reasonable expectation would succeed.

28. Thereafter, plaintiff was required to appear before a Judge of the Criminal Court to defend again unjust charges, which were ultimately dismissed.

29. That the CITY OF NEW YORK and the named defendants did falsely and wrongfully arrest plaintiff without probable or reasonable cause nor knowledge of warrant, intended to and did confine plaintiff without his consent, which non-privileged confinement plaintiff was consciously aware of and did initiate a criminal proceeding without probable cause maliciously.

30. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, and engaging in a policy and procedure of arresting persons without individualized reasonable or probable cause for nefarious, unlawful reasons, including to satisfy arrest quotas, to obtain

overtime pay and/or for employment advancement and/or to attempt to justify their own wrongful conduct, and without probable or reasonable cause, and repeatedly providing false information and testimony without reprimand to the offending officers.

31. That said illegal and unlawful arrests of innocent persons without reasonable or probable cause and conducting searches in public and while in custody are a matter of policy and record and openly acknowledged or known by the defendants and their supervisors, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances.

32. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeen, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

33. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhil Polanco

testified in open court and under oath that the NEW YORK CITY POLICE

DEPARTMENT routinely arrest primarily minority populations without a legal reason

to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest

quotas, euphemistically known under such terms as 'productivity goals', lead to a

practice and procedure of, for instance, arresting persons for conduct that is not

criminal.

34. Additionally, Officer Craig Matthews presented evidence in federal court that he

was subject to retaliation for reporting said quota system in 2009 and Officers Pedro

Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest

quotas by the New York City Police Department..

35. Furthermore the CITY OF NEW YORK allowed, condoned, permitted and

caused a policy and procedure of arresting innocent persons for such charges as

disorderly conduct in ill-fated attempts at justifying their own misconduct, or in

retaliation for legal behaviors not to the arresting officers liking, and in an effort to

subjugate certain minority male populations as an excuse for selectively enforcing

supposed 'quality of life' violations.

36. Said practice and procedure of falsely arresting innocent persons on such charges

as disorderly conduct is well evidence by defendants' own compstat and other

statistical tabulations, as well as those of the district attorney, the civilian complaint review board and the bureau of internal affairs in retaliation and in ill-fated attempts at justifying their own wrongful conduct.

37. For instance, statistical analysis of the 51,503 criminal cases in New York City from 2009 through 2014 charging resisting arrest show that 5% of officers account for 40% of resisting arrest charges and 15% of officers account for nearly 75% of such cases and 60% of officers made arrests while never charging resisting arrest, evincing, among other things, the violent nature of only certain officers, including the named offers herein.

38. Additionally on October 1, 2015 the New York City Department of Investigation Office of the Inspector General for the NYPD issued a report, which is incorporated herein and can be found at http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf. That report determined that the New York City Police Department routinely fails to discipline officers who have engaged in misconduct, and fails to adequately track instances of abuse of power, and fails to properly train officers, and despite those findings, and perfunctory attempts at remediation, the practice continues unabated, and was evidenced by the The Report of the Independent Panel on the Disciplinary System of the New York City Police

Department, found at <https://www.independentpanelreportnypd.net> and incorporated herein

39. While numerous high profile cases demonstrate this practice, such as the de minimis discipline of the police officers who caused or contributed to the deaths of Eric Gardner and Noel Polanco or the assault upon James Blake, thousands of other individuals have been victims of this practice, including the Plaintiff herein, who garner no publicity but who are necessarily known by the Defendants by virtue of the claims and actions brought and filed against such officers who engage in such nefarious and brutal actions yet receive little or no repercussions or discipline as detailed above.

40. Furthermore, a recent report and analysis conducted by the New York City Civilian Complaint Review Board, found at https://www1.nyc.gov/assets/ccrb/downloads/pdf/policy_pdf/issue_based/CCRB_YouthReport.pdf and respectfully incorporated herein, found that 64% of civilian complaints against New York City police officers were filed by or on behalf of young black people ages 8 to 18 who claimed to have been mistreated after being stopped for innocuous activities. The Board analyzed 112 completed investigations between Jan. 1, 2018 and June 30, 2019, showing an overwhelming number (nearly 90%) of grievances involved children of color (black and

Hispanic youth). The report also found that the number of complaints by youth of color was significantly larger than in the overall population (69.1%).

41. Among the complaints probed was [A] a March 2018 incident in which a group of black and Hispanic boys was stopped by multiple police officers simply for talking, laughing and playing with sticks picked up off the ground as they walked home, according to the report. A lieutenant had two of the boys, an 8-year-old and a 14-year-old, whom officers saw running with sticks in their hands handcuffed and taken to a police station in tears, according to the report; [B] An 11-year-old black boy who was stopped and frisked by an undercover officer after they saw him shaking hands with and high-fiving a group of adults he knew in a housing project; [C] A 16-year-old Hispanic boy stopped for jaywalking by an officer and a sergeant in plainclothes and searched without probable cause, according to the report. [D] A 15-year-old black boy was holding a deli bag and walking to a homeless shelter when a plainclothes detective and sergeant in an unmarked vehicle ordered him to stop without announcing they were police. The teenager ran but was tackled and handcuffed, suffering injuries.

42. That no negligence or actions on the part of the plaintiff LEE DELGADO Jr. contributed to the occurrences alleged herein in any manner whatsoever.

43. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

44. That as a result of the foregoing, the plaintiff LEE DELGADO Jr. was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF LEE DELGADO Jr.

45. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 44 as though more fully set forth herein.

46. That on October 8, 2019 plaintiff caused a Notice of Claim to be presented to the defendant CITY OF NEW YORK, by providing a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

47. At least thirty (30) days have elapse prior to the commencement of this action and adjustment of payment thereof be neglected or refused by the defendant.

48. Defendant did notice and demand a General Municipal Law §50-h hearing and plaintiff did appear and testify at said hearing on February 7, 2020.

49. This action was commenced on the claim within one year and ninety days after the happening of the events upon which the claims are based or within the time allowed by law.

50. That on or about July 28, 2019 at approximately 8 P.M., at or near the vicinity of East 184th Street and Ryer Avenue, Bronx, New York, the plaintiff LEE DELGADO Jr. was improperly arrested and confined without privilege, knowledge of warrant, proper authority, justification nor reasonable or probable cause, having no reason in law or in fact to arrest LEE DELGADO Jr..

51. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff LEE DELGADO Jr. of Due Process under Law.

52. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, P.O. JOEL AYALA, P.O. EDMUNDO RIVERA, Lt. ANDERSON ORTIZ, POLICE OFFICERS JOHN AND/OR JAMES DOE were acts of discrimination, were racist, and improper, and that the defendants' actions amounted to False Arrest, and the defendants were otherwise careless, reckless and negligent.

53. That the plaintiff LEE DELGADO Jr., being aware of his unjust confinement, suffered severe and serious physical, emotional and psychological trauma, damages

and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK and its POLICE OFFICERS JOHN AND/OR JAMES DOE.

54. That no negligence or actions on the part of the plaintiff LEE DELGADO Jr. contributed to the occurrences alleged herein in any manner whatsoever.

55. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

56. That as a result of the foregoing, the plaintiff LEE DELGADO Jr. was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF LEE DELGADO Jr.

57. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 56 as though more fully set forth herein.

58. That during his aforesaid arrest, the defendants, their agents, servants and/or employees utilized unnecessary, excessive and unjustified force against the plaintiff.

59. That the actions herein described, by the defendants, their agents, servants and/or employees, constituted assaults and battery upon Plaintiff.

60. As a result of the aforesaid assaults, plaintiff LEE DELGADO Jr. received injuries with accompanying physical and mental pain and suffering; that the plaintiff

was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations and was otherwise damaged and injured.

61. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

62. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

63. That as a result of the foregoing, the plaintiff LEE DELGADO Jr. was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF LEE DELGADO Jr.

64. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 63 as though more fully set forth herein.

65. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

66. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest of individuals and in the proper use of force.

67. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, plaintiff LEE DELGADO Jr. was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

68. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second, Third and Fourth Causes of Action, and inclusive of punitive damages, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
September 24, 2020



By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff
LEE DELGADO Jr.
888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

P.O. Joel Ayaya, Shield 8262, Strategic Response Group, 1278 Sedgwick Ave., Bronx NY 10452
P.O. Edmundo Rivera, Shield 696, 52nd Precinct, 3016 Webster Ave., Bronx NY 10467
Lt. Anderson Ortiz, 46th Precinct, 2120 Ryer Ave., Bronx NY 10457

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

LEE DELGADO, Jr.

I have read the annexed

AMENDED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that affirmant is presently maintaining his office outside of the county wherein plaintiff resides due to the NY PAUSE and Executive Orders issued thereunder.

DATED: Bronx, N.Y.
 September 24, 2020



JONATHAN L. GLEIT, ESQ.